



CHAPTER xxx

An Act to authorise the lord mayor, aldermen and citizens of the city of Manchester to construct river works and to acquire lands; to make provision with regard to lands and the health, local government and finances of the said city; to provide for the removal of restrictions attaching to the churchyard of the former church of Saint James situate in George Street in the city, and to authorise the sale of the said churchyard; and for other purposes.

[19th July, 1962]

WHEREAS—

(1) The city of Manchester (in this Act called “the city”) is a county borough under the management and local government of the lord mayor, aldermen and citizens of the city (in this Act called “the Corporation”):

(2) It is expedient to empower the Corporation to make and maintain the river work authorised by this Act:

(3) It is expedient to confer upon the Corporation powers relative to the purchase and use of lands for the purposes mentioned in this Act:

(4) The churchyard of the former church of Saint James in the city was consecrated as a burial ground in the year seventeen hundred and eighty-eight:

(5) Burials in the said churchyard were discontinued by virtue of an Order in Council of Her late Majesty Queen Victoria dated the eighth day of June, eighteen hundred and fifty-four:

(6) The said church was removed and the benefice was united with the benefice of Saint Ann, Manchester, in pursuance of an Order in Council of His late Majesty King George the Fifth dated the seventh day of May, nineteen hundred and twenty-eight:

(7) It is expedient that the said churchyard should be freed from all restrictions which may affect the same by reason of such consecration or otherwise and that the incumbent of the benefice of Saint Ann, Manchester, should be empowered to sell and dispose of the same for the widening of any street or for building or for any other purposes freed from all such restrictions as aforesaid:

(8) A plan showing the said churchyard was in November, nineteen hundred and sixty-one, deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and a copy was deposited with the town clerk of the city:

(9) By section XVI of the Manchester Corporation Waterworks Amendment Act, 1848, the Corporation were required to construct and maintain upon the river Etherow an auxiliary reservoir together with all necessary and proper weirs, gauges and works for the purpose of ensuring the full benefit of a supply of water to certain mills and works therein referred to:

(10) The said auxiliary reservoir and other works were constructed but are no longer required and it is expedient that the Corporation be authorised to remove the same:

(11) It is expedient to make further provision in reference to the health, local government, improvement and finances of the city and to confer upon the Corporation the further powers contained in this Act:

(12) It is expedient that the other provisions contained in this Act be enacted:

(13) The purposes of this Act cannot be effected without the authority of Parliament:

(14) Estimates have been prepared by the Corporation for and in connection with the following purpose and such estimates are as follows:—

The construction of the river work authorised						
by this Act	...	...	...	...	...	£195,000

(15) The work included in such estimates is a permanent work and it is expedient that the Corporation be empowered to borrow money for that purpose as provided by this Act:

(16) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

(17) Plans and sections showing the lines and levels of the river work authorised by this Act and showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the town clerk of the city which plans, sections and book of reference are in this Act referred to respectively as the deposited plans, sections and book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

PART I

PRELIMINARY

1.—(1) This Act may be cited as the Manchester Corporation Act, 1962.

Short and
collective
titles.

(2) The Manchester Corporation Acts, 1844 to 1961, and this Act may be cited together as the Manchester Corporation Acts, 1844 to 1962.

(3) The Manchester Corporation Acts and Orders, 1844 to 1961, and this Act may be cited together as the Manchester Corporation Acts and Orders, 1844 to 1962.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—River works.

Part IV.—Public order and public safety.

Part V.—St. James's Churchyard.

Part VI.—Finance and superannuation.

Part VII.—Miscellaneous.

Part VIII.—General.

PART I
—cont.Incorporation
of Lands
Clauses Acts.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act) except sections 92, 127 to 133, 150 and 151 of the Lands Clauses Consolidation Act, 1845, and section 5 of the Lands Clauses Consolidation Acts Amendment Act, 1860, are hereby incorporated with this Act:

Provided that—

- (a) the bond required by section 85 of the Lands Clauses Consolidation Act, 1845, shall be sufficient without the addition of the sureties mentioned in that section; and
- (b) the expression “the promoters of the undertaking” shall be construed to mean the Corporation.

Interpretation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act, 1936, have the same respective meanings, unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“the Act of 1844” means the Act 7 and 8 Vict. c. xl intituled “An Act for the good Government and Police Regulation of the Borough of Manchester”;

“the Act of 1920” means the Manchester Corporation Act, 1920;

“the Act of 1933” means the Local Government Act, 1933;

“the Act of 1936” means the Public Health Act, 1936;

“the Act of 1961” means the Land Compensation Act, 1961;

“the appointed day” has the meaning assigned to it by section 47 (The appointed day) of this Act;

“the city” means the city of Manchester;

“the commission” means the British Transport Commission;

“contravention” includes a failure to comply and “contravene” shall be construed accordingly;

“the Corporation” means the lord mayor, aldermen and citizens of the city;

“the council” means the council of the city;

“enactment” includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force within the city;

“financial year” means a period of twelve months ending on the thirty-first day of March;

“ the general rate fund ” means the general rate fund of the city;

“ land ” includes water and any interests in land or water and any easement or right in, to or over land or water;

“ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Act of 1961 and by this Act;

“ magistrates’ court ” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act, 1952;

“ the Minister ” means the Minister of Housing and Local Government;

“ telegraphic line ” has the same meaning as in the Telegraph Act, 1878;

“ the town clerk ”, “ the medical officer of health ” and “ the treasurer ” mean respectively the town clerk, the medical officer of health and the treasurer of the city;

“ the tribunal ” means the Lands Tribunal.

(3) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

LANDS

5.—(1) Subject to the provisions of this Act, the Corporation may enter upon, take and use such of the lands in the city delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of the river work authorised by this Act. Power to acquire lands.

(2) The powers of compulsory purchase of land under this section shall cease after the expiration of three years from the first day of December, nineteen hundred and sixty-two.

6.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement of errors in or description of the ownership or occupation of any land, the Corporation, after giving not less than ten days’ notice to the owner, lessee and occupier of the land in question, may apply to two justices having jurisdiction in the city for the correction thereof. Correction of errors in deposited plans and book of reference.

PART II
—cont.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, and with the town clerk and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Corporation to take the land and execute the works in accordance with the certificate.

(4) A copy of a certificate deposited under this section with the town clerk shall be kept by him with the other documents to which it relates.

Acquisition of
part only of
certain
properties.

7.—(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act, 1845.

(2) No person shall be required to sell a part only of any house, building or factory, or of a park or garden belonging to a house, if he is willing and able to sell the whole of the house, building, factory, park or garden unless the tribunal determines—

(a) in the case of a house, building or factory, that such part as is proposed to be taken can be taken without material detriment to the house, building or factory; or

(b) in the case of a park or garden, that such part as is proposed to be taken can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the tribunal determines as aforesaid, compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part; and thereupon the person interested shall be required to sell to the Corporation that part of the house, building, factory, park or garden.

Power to
expedite entry.

8. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act, but not less than three months after giving the owner and occupier of the land notice of their intention to exercise the powers of this section, the Corporation may enter on and take possession of the land, or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act, 1845;

Provided that the Corporation shall pay the like compensation for land of which possession is taken under this section, and the like interest on the compensation awarded, as would have been payable if the provisions of those sections had been complied with.

9. Any person acting on behalf of the Corporation and duly authorised in that behalf may, on producing, if so required, some duly authenticated document showing his authority at all reasonable times enter on any land that the Corporation are authorised by this Act to acquire compulsorily for the purpose of surveying or valuing the land:

Power to enter for survey or valuation.

Provided that no land shall be entered under this section unless the Corporation, not less than seven days before the date of the first entry and not less than twenty-four hours before any subsequent entry, have given notice to the owner and occupier of the land.

10. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account—

Disregard of recent improvements and interests.

(a) any improvements or alteration made, or building erected, after the fifth day of December, nineteen hundred and sixty-one; or

(b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made, erected or created with a view to obtaining or increasing the compensation or purchase money.

11.—(1) Any private right of way over any land that may be acquired compulsorily under this Act shall, if the Corporation so resolve and give notice of their resolution to the owner of the right, be extinguished as from the acquisition of the land whether compulsorily or by agreement, or as from the expiration of one month from the service of the notice, whichever is the later.

Extinction of private rights of way.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under and in accordance with the Act of 1961.

12.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit, subject to the provisions of those Acts, grant to the Corporation any easement or right required for the purposes of this Act in or over the lands not being an easement or right of water in which some person other than the grantor has an interest.

Grant of easements by persons under disability.

PART II
—cont.

(2) The provisions of the said Acts with respect to lands and rentcharges, so far as they are applicable, shall extend and apply to any such grant and to any such easement or right as aforesaid.

Power to
reinstate
owners or
occupiers
of property.

13.—(1) The Corporation may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired or to be acquired under this Act with respect to his reinstatement.

(2) Any such agreement may provide for the exchange of land and for that purpose the Corporation may pay or receive money for equality of exchange.

Agreements
with
adjoining
owners.

14.—(1) The Corporation may enter into and carry into effect agreements with any person being the owner of, or interested in, any land abutting on any portion either of the works authorised by this Act or of land that may be acquired under this Act with respect to the sale by the Corporation to him of any land, including any part of a street, appropriated by the Corporation under this Act and not required for those works.

(2) The Corporation may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Corporation for the purposes of this Act or any easement or right so required.

Reservation
of easements,
etc., by
Corporation.

15. On selling any land the Corporation—

- (a) may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly; and
- (b) may make the sale subject to such other reservations, conditions and restrictions as they think fit; and, without prejudice to the generality of the foregoing words of this paragraph, such conditions and restrictions may prohibit or restrict the exercise of noxious trades or the deposit or discharge of manure, sewage or other impure matter.

Amendment
of section 19
of Manchester
Corporation
Act, 1958.

16. Section 19 (Development of land) of the Manchester Corporation Act, 1958, shall apply and have effect as if the following were substituted for the first proviso to subsection (1) of that section:—

“ Provided that nothing in this section shall apply to land in the city acquired by the Corporation under section 38 or section 40 of the Act of 1947 or to land in the city appropriated by them for the purposes for which land can be acquired under those sections ”,

PART III

RIVER WORKS

17. Subject to the provisions of this Act the Corporation ^{Power to} may within the city make and maintain in the lines shown on ^{construct} the deposited plans and according to the levels shown on the ^{river work.} deposited sections the river work referred to in this section together with all necessary and proper works and conveniences connected therewith or incidental thereto, that is to say:—

- (a) a diversion of the river Medlock from a point on the said river near the easterly boundary of Wood Street to a point on the said river at the easterly boundary of the bridge carrying Princess Street over the said river; and
- (b) the culverting of the said diverted river.

18. In the construction of the river work authorised by this ^{Limits of} Act the Corporation may deviate from the lines thereof as shown ^{deviation} on the deposited plans to any extent not exceeding the limits of ^{for river} deviation shown on those plans and from the levels thereof as ^{work.} shown on the deposited sections to any extent not exceeding two feet either upwards or downwards.

19. The Corporation may in connection with the river work ^{Subsidiary} authorised by this Act and for the purposes thereof— ^{river works.}

- (a) make, provide and maintain all necessary and convenient walls, embankments, piling, fences, culverts, drains, weirs, sluices and footpaths and all such machinery, works and appliances as may be required:

Provided that any machinery works or appliances made, provided or maintained under the powers of this paragraph shall be so made or provided and so maintained, worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster General or with telegraphic communication by means of any such line;

- (b) (i) stop up and discontinue such portion of the river Medlock as will be rendered unnecessary by reason of the diversion thereof under the powers of this Part of this Act; and
- (ii) fill in the channel of the said portion of the river and execute any works which they may deem to be necessary in connection therewith;

PART III
—cont.

(c) execute any works for the protection of any adjoining lands or buildings; and

(d) remove, alter, divert or stop up any drain, sewer, channel or watercourse the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or water in any channel or watercourse.

Alteration
of steps, etc.

20.—(1) For or in connection with the river work authorised by this Act the Corporation may raise, sink or otherwise alter the position of any of the steps, areas, cellars, windows and pipes or spouts belonging to any house or building and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and shall make reasonable compensation for any damage caused by the exercise of the powers of this section.

(2) Any question of disputed compensation payable under the provisions of this section shall be determined under and in accordance with the Act of 1961.

River work
to be part
of main river.

21. The river work authorised by section 17 (Power to construct river work) of this Act when completed and brought into operation shall be part of the main river of the Mersey River Board for the purposes of Part II of the Land Drainage Act, 1930, and thereupon the portion of the river Medlock filled in under paragraph (b) of section 19 (Subsidiary river works) of this Act shall cease to be part of such main river and the map approved by the Minister of Agriculture and Fisheries on the seventeenth day of April nineteen hundred and fifty under section 6 of the River Boards Act, 1948, shall be deemed to be amended accordingly.

Underpinning
of buildings.

22.—(1) The Corporation may at their own cost and in accordance with the provisions of this section underpin or otherwise strengthen any house or building within one hundred feet of the works authorised by this Act.

(2) (a) Except in the case of emergency the Corporation shall give at least fourteen days' notice to the owners, lessees, and occupiers of any house or building intended to be underpinned or otherwise strengthened.

(b) Any notice required to be given under this subsection shall be served by the recorded delivery service.

(c) The provisions of sub-paragraphs (2) and (3) of paragraph 19 of the First Schedule to the Acquisition of Land (Authorisation Procedure) Act, 1946, shall apply to the service of any notice required to be given under this subsection as if the notice were a notice required or authorised to be served under that schedule.

(3) If the owner, lessee or occupier of any such house or building shall within seven days after the giving of such notice give a counter-notice in writing that he disputes the necessity of such underpinning or strengthening the dispute shall be settled by arbitration.

(4) The Corporation shall be liable to compensate the owner, lessee and occupier of every such house or building for any loss or damage which may result to them by reason of the exercise by the Corporation of the powers of this section provided that the claim for compensation in respect of such loss or damage shall be made to the Corporation within three months from the occurrence thereof.

(5) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the Corporation may from time to time after the completion of such underpinning or strengthening enter upon and survey such house or building and do such further work for underpinning or strengthening as they may deem necessary or expedient or as in the case of dispute between the Corporation on the one hand and the owner, lessee or occupier of the house or building on the other hand shall be settled by arbitration.

(6) If in any such case as is referred to in the last foregoing subsection the underpinning or strengthening shall at any time within twelve months from the completion of the further work prove inadequate for the support or protection of the house or building against further injury arising from the execution of the works authorised by this Act, the Corporation shall make compensation to the owner, lessee or occupier of the house or building in respect of such further injury, provided that the claim for compensation in respect thereof be made within one month from the discovery thereof.

(7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Corporation from the liability to pay compensation under section 68 of the Lands Clauses Consolidation Act, 1845, or under any other

PART III
—cont.

Act to the persons legally entitled thereto but any work done or compensation paid under this section shall be taken into account in assessing the compensation payable under the said section 68.

(8) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Act of 1961.

Stopping up
of Drover
Lane.

23.—(1) The Corporation may stop up the whole or such portion or portions as they think fit of so much of Drover Lane in the city as is shown on the deposited plans as intended to be stopped up and thereupon all rights of way over or along the same shall be extinguished and the Corporation may appropriate and use the site of the highway stopped up:

Provided that the Corporation shall not, under the powers of this subsection, stop up any part of Drover Lane unless—

- (a) such part is bounded on both sides by lands belonging to the Corporation; or
- (b) the Corporation obtain the consent of the owners, lessees and occupiers of the houses and lands on both sides thereof.

(2) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under and in accordance with the Act of 1961.

(3) The provisions of Part II of the Twelfth Schedule to the Highways Act, 1959, shall apply in relation to any portion or portions of Drover Lane stopped up under this section to the same extent as if such portion or portions of Drover Lane had been stopped up pursuant to an order made under section 108 of the Highways Act, 1959, on the application of the Corporation:

Provided that any apparatus to be constructed in lands of the Corporation in pursuance of paragraph 5 of the Twelfth Schedule to the Highways Act, 1959, shall be constructed in such manner and in such line or situation as may be agreed between the undertakers and the Corporation or in default of agreement determined by arbitration.

For protection
of Mersey
River Board.

24. The following provisions for the protection of the Mersey River Board (in this section called “the board”) shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

- (1) In this section “the river work” means the river work authorised by section 17 (Power to construct river work) of this Act:

- (2) The Corporation shall not exercise the powers contained in paragraph (b) of section 19 (Subsidiary river works) of this Act until the diversion of the river Medlock comprised in the river work has been completed to the reasonable satisfaction of the board:
- (3) The river work and the works authorised by paragraphs (a), (b) and (c) of the said section 19 shall be constructed only in accordance with plans, sections and specifications to be submitted to and reasonably approved by the board:
- (4) If the board do not within two months of the submission to them of any plans, sections and specifications pursuant to paragraph (3) of this section intimate to the Corporation their approval or disapproval thereof they shall be deemed to have approved of the same:
- (5) Until the river work has become part of the main river of the board the Corporation shall reimburse the board the amount of any costs, damages or expenses which may necessarily be incurred by them in the exercise of their statutory powers and duties arising out of or in consequence of the carrying out by the Corporation of the river work (including the culverting of the diverted river) or any works authorised by the said section 19:
- (6) Any dispute which may arise between the Corporation and the board under this section shall be determined by arbitration.

PART IV

PUBLIC ORDER AND PUBLIC SAFETY

25.—(1) As from the appointed day, subject to the provisions of this section the Corporation may upon such terms and conditions and for such period as they think fit, grant a licence to any person wishing to act as a porter (hereinafter called “a market porter”) at the Corporation’s markets, and they may renew, or at any time suspend or revoke, any such licence.

Licensing of
market
porters.

(2) An application for the grant or renewal of any such licence shall be made in such form and shall contain such particulars as the Corporation may reasonably require and may from time to time determine.

(3) (a) The Corporation shall not refuse to grant or renew such a licence, except on the ground that the applicant is, by reason of misconduct or incapacity not a fit or proper person to carry on, or to continue to carry on, the business, occupation or calling of a market porter and the Corporation shall not suspend or revoke a licence except on the same ground.

PART IV
—cont.

(b) In any case in which the Corporation refuse to grant or renew a licence, or decide to suspend or revoke a licence, the Corporation shall inform the applicant or the person licensed, as the case may be, in writing of such misconduct or incapacity.

(4) (a) If on or after the appointed day any person (other than the owner of goods sold or offered or displayed for sale in the Corporation's markets or the bona fide whole-time employee of such owner) while unlicensed acts as a porter at the Corporation's markets he shall for each offence be liable to a fine not exceeding forty shillings.

(b) If any person contravenes—

(i) any of the terms and conditions subject to which he is granted a licence under or in pursuance of subsection (1) or subsection (8) of this section; or

(ii) the provisions of subsection (6) of this section;
he shall be liable to a fine not exceeding forty shillings:

Provided that the court by which he is convicted may, instead of or in addition to imposing a fine, order the suspension or revocation of his licence.

(5) Any person aggrieved by—

(a) the terms and conditions on which a licence is granted under or in pursuance of subsection (1) or subsection (8) of this section; or

(b) the refusal of the Corporation to grant or renew a licence under this section; or

(c) the suspension or revocation of a licence under or in pursuance of subsection (1) or subsection (8) of this section;

may appeal to a magistrates' court.

(6) (a) Every person licensed under this section shall be provided by the Corporation with a badge for which he shall pay a sum not exceeding five shillings which sum shall be returnable when he ceases to be licensed, or discontinues the business calling or occupation of a market porter, and the badge is returned to the Corporation.

(b) Every person licensed under this section shall when acting as a market porter wear and display his badge.

(7) In this section—

(a) the expression "the Corporation's markets" means any market, market hall, market place or other premises forming part of the markets undertaking of the Corporation; and

(b) the owner of goods sold in the Corporation's markets shall be deemed to include the seller and the buyer; and

(c) the expressions " buyer " and " seller " have the meaning respectively assigned to them by section 62 of the Sale of Goods Act, 1893.

(8) As from the appointed day sections CLXVIII to CLXXII of the Act of 1844 are hereby repealed:

Provided that the following provisions shall apply to any person who immediately before the appointed day was registered as a porter under those sections:—

(a) upon his making application for a licence under this section the Corporation shall not refuse to grant to any such person a licence for a period of at least three years, subject however to the right of the Corporation to suspend or revoke the licence under and in accordance with the foregoing provisions of this section;

(b) any person granted a licence in pursuance of the preceding paragraph shall during the period of the licence comply with the requirements of subsection (6) of this section and observe the terms and conditions on which the licence is granted.

26.—(1) The Corporation may make byelaws for declaring that to the extent determined by such byelaws—

Provisions as
to motor
vehicles let
for hire.

(a) the provisions of the Town Police Clauses Act, 1847, with respect to hackney carriages, and section 171 of the Public Health Act, 1875;

(b) the local enactments specified in subsection (2) of this section; and

(c) the byelaws of the Corporation in force with respect to hackney carriages;

shall (in addition to applying to hackney carriages) extend and apply to every motor vehicle (other than a hackney carriage) which is available for hire with the service of a driver notwithstanding that such vehicle is available for hire on or from private premises only:

Provided that this section shall not apply to any of the following vehicles:—

(i) a vehicle which is kept by any company, firm or person in connection with any business carried on by them or him as funeral directors or owners of funeral vehicles available for hire and used wholly or mainly in connection with such business;

PART IV
—cont.

- (ii) a vehicle which is kept and used ordinarily for the purpose of being let on hire by the day or for a longer period;
- (iii) a public service vehicle within the meaning assigned to that expression by section 117 of the Road Traffic Act, 1960;
- (iv) a trolley vehicle; and
- (v) any vehicle belonging to or used by the commission for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises:

Provided also that nothing in this section shall empower the Corporation to fix the site of the stand or starting place of any motor vehicle standing or plying for hire in any railway station or railway premises or in any yard belonging to the commission except with the consent of the commission.

(2) The local enactments referred to in subsection (1) of this section are as follows:—

The provisions of the Act of 1844 (as amended by any subsequent enactment) with respect to hackney carriages;

Manchester Corporation Waterworks and Improvement Act, 1875—

Section 48 (As to licences for hackney carriages).

(3) As respects byelaws made under this section the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Secretary of State.

Removal of
vehicles.

27.—(1) If any vehicle is left—

- (a) on any land or in any premises belonging to or under the control of the Corporation; or
- (b) on any grass verge or open space provided or laid out by the Corporation in pursuance of the Housing Act, 1957, or any Act repealed by that Act;

the Corporation may after giving not less than forty-eight hours' notice to the owner of the vehicle, unless it is not practicable after reasonable inquiry to ascertain the name and address of the owner, remove the vehicle for safe custody and may recover from such owner the expenses incurred in such removal and safe custody:

Provided that this section shall not apply to a vehicle left on a road (as defined in section 257 of the Road Traffic Act, 1960).

(2) If any vehicle to which subsection (1) of this section applies be not within three months of its removal by the Corporation proved to the satisfaction of the Corporation to belong to any claimant, it shall thereupon vest in the Corporation:

Provided that if within six months of its removal a claim is made to the vehicle by a person who subsequently proves to the satisfaction of the Corporation that he is the owner thereof then the Corporation shall, if the vehicle is unsold, permit the owner to retake it upon payment of the expenses reasonably incurred in such removal and safe custody or, if the vehicle has been sold, the Corporation shall pay to such owner the amount of the proceeds of such sale after deducting the expenses reasonably incurred in its removal, safe custody and sale.

(3) The Corporation shall be deemed not to have made reasonable inquiry to ascertain the name and address of the owner of any vehicle to which this section applies unless they have taken in relation to that vehicle such steps as may be prescribed by any regulations for the time being in force under section 43 of the Road Traffic Act, 1960, for authorising the Corporation to sell or otherwise dispose of the vehicle if it had been left on a road and if it appeared to the Corporation that it had been abandoned.

PART V

ST. JAMES'S CHURCHYARD

28. In this Part of this Act unless the subject or context otherwise requires—

Interpretation
of this Part
of Act.

“the bishop” means the Lord Bishop of Manchester for the time being and during a vacancy in the see of Manchester includes the guardian of the spiritualities thereof;

“the churchyard” means the lands comprising the churchyard appurtenant to the former church of Saint James, George Street, in the city which said lands are shown coloured pink on the plan of Saint James's Churchyard referred to in the preamble to this Act;

“the incumbent” means the rector of the united benefice or, during any period in which the united benefice is vacant, the sequestrators of the income of the united benefice;

“the parish church” means the parish church of the united benefice;

“the parochial church council” means the parochial church council of the parish of Saint Ann, Manchester;

“the united benefice” means the benefice of Saint Ann, Manchester.

PART V
—cont.Power to sell
churchyard
and application
of proceeds.

29.—(1) The incumbent—

- (a) may convey to the Corporation such part or parts of the churchyard as may be required for the widening of any street; and
- (b) may convey, sell, use, deal with or otherwise dispose of any part or parts of the churchyard not so required by the Corporation for such price or consideration in such manner and for such purposes and upon such terms and conditions as the incumbent may think fit.

(2) The Corporation shall pay to the incumbent in consideration of any conveyance to them under subsection (1) of this section such sum as may be agreed between the Corporation and the incumbent or as, failing agreement, may be determined by the Lands Tribunal, and, for the purpose of determining such sum, regard shall be had to the expense (if any) incurred or to be incurred by the Corporation in removing the remains of deceased persons from the land so conveyed.

(3) All sums payable by any person in consideration of the conveyance, sale or other disposal to him of the churchyard or any part thereof under this section shall be paid to the incumbent (whose receipt shall be a good and sufficient discharge) and after deducting the amount of any costs, charges or other expenses incurred by him in connection with the conveyance, sale or other disposal, the incumbent shall pay the net proceeds to the parochial church council.

(4) All moneys received by the parochial church council under this section shall be applied by them for such of the following purposes as the incumbent with the approval of the parochial church council may from time to time determine, namely:—

- (a) the preservation and maintenance of the fabric of the parish church;
- (b) the improvement of the benefice income of the united benefice;
- (c) the purchase, development, improvement and maintenance of lands and buildings held or used or to be held or used for or in connection with the parish of Saint Ann, Manchester; and
- (d) any other charitable ecclesiastical purposes connected with the united benefice.

Discharge of
trusts and
restrictions.

30. As from the passing of this Act the churchyard shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever which immediately before the passing thereof attached to the churchyard under ecclesiastical law and from all rights and interests of any person who is a personal

representative or relative of any deceased person whose remains are interred in the churchyard and from all other trusts, uses, obligations, disabilities and restrictions whatsoever which attached thereto immediately before the passing of this Act by reason of the churchyard or any part thereof being a disused burial ground or otherwise:

Provided that nothing in this Act shall operate to affect prejudicially any private right or easement (not being a right in respect of a grave) over the churchyard or any part thereof which attached thereto immediately before the passing of this Act.

31. Notwithstanding anything contained in any enactment but subject to the provisions of this Act it shall be lawful at any time after the passing of this Act to use, deal with or dispose of the churchyard or any part thereof for the widening of any street or for the erection of any building or for any other purpose in like manner as if no part thereof had ever been used or set apart for the purpose of burial of human remains.

Power to use
churchyard
for street
widening
or other
purposes.

32.—(1) Before any part of the churchyard is used for—

(a) the widening of any street; or

(b) the erection of a building;

Removal of
human
remains.

the owner shall remove or cause to be removed therefrom the remains of all deceased persons interred therein:

Provided that if it appears to the Secretary of State that compliance with any of the requirements of this subsection is in all the circumstances unnecessary in relation to all or any of the remains, he may dispense (on such conditions, if any, as he thinks fit) with compliance with those requirements in relation to those remains.

(2) (a) Before proceeding to remove any such remains the owner shall give notice of his intention so to do by publishing a notice in manner provided in paragraph (b) of this subsection in at least two local newspapers circulating in the city and shall display a like notice in a conspicuous place in the churchyard and such notice shall have embodied in it the substance of subsections (3), (4), (5), (6), (7), (8) and (9) of this section.

(b) The notice referred to in paragraph (a) of this subsection shall be published in each of four successive weeks by publication in at least one newspaper in the first and third of those weeks and in at least one other newspaper in the second and fourth of those weeks.

(3) At any time within two months after the first publication of such notice any person who is a personal representative or relative of any deceased person whose remains are interred in the churchyard may give notice in writing to the owner of his intention

PART V
—cont.

to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose (but subject as hereinafter mentioned to any regulations made by the bishop) within two months from the date of such last-mentioned notice to cause such remains to be removed to and reinterred in any consecrated burial ground or cemetery in which burials may legally take place but in the case of a churchyard only with the consent of the incumbent of the benefice concerned.

(4) If any person giving such notice as aforesaid fails to satisfy the owner that he is such personal representative or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of Manchester who shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(5) The expenses of a removal and reinterment (not exceeding in respect of remains removed from any one grave the sum of twenty-five pounds) shall be defrayed by the owner such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the owner in respect of the remains in any grave or if after such a notice has been given the person giving it or, as the case may be, the person specified in any order made under subsection (4) of this section fails to comply with either a provision of this section or a regulation of the bishop, the owner may, without any faculty for the purpose, remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as, subject to the consent of the bishop, the owner thinks suitable for the purpose, but in the case of interment in a churchyard, the previous consent of the incumbent of the benefice concerned shall also be required.

(7) Upon any removal of remains from any part of the churchyard, the owner shall deposit with the Registrar-General a certificate of removal and reinterment giving the dates of removal and reinterment respectively, identifying the place from which the remains were removed and the place in which they were reinterred and showing the particulars of each removal separately.

(8) All monuments and tombstones relating to the remains of any deceased person removed under this section shall, at the expense of the owner, be removed and re-erected at the place of reinterment of such remains or at such place as the bishop may direct on the application (if any) of such personal representative

or relative as aforesaid or, failing such application, on the application of the owner, and the owner shall cause a record to be made of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument and tombstone as a separate entry, and such record shall be deposited with the Registrar-General:

Provided that in the case of a monument or tombstone in respect of which no application is made by such personal representative or relative as aforesaid, it shall not be necessary to re-erect the monument or tombstone if the owner considers that by reason of its ruinous condition it is unsuitable for re-erection, and any such monument or tombstone may be disposed of in such manner as the incumbent may direct.

(9) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health.

(10) (a) For the purposes of this section the expression “the owner” means—

- (i) in relation to a part of the churchyard used or required for use for the widening of a street, the Corporation; and
- (ii) in relation to any part of the churchyard used or required for use for the erection of a building, the person in whom that part of the churchyard is vested:

Provided that the Corporation and any person in whom the churchyard or any part thereof is vested may enter into an agreement whereby either the Corporation or that person shall be responsible for removing from the churchyard or the part thereof to which the agreement relates the remains of deceased persons interred therein in accordance with the provisions of this section and the party so responsible under any such agreement shall be deemed to be “the owner” for the purposes of this section.

(b) Any agreement entered into in pursuance of the proviso to the foregoing paragraph shall contain such provisions as may be necessary—

- (i) for ensuring that the provisions of this section are complied with; and
- (ii) for securing that the expenses incurred shall be borne by the parties in such proportions as may be agreed or as, in default of agreement, may be settled by arbitration.

PART VI

FINANCE AND SUPERANNUATION

Power to
borrow.

33.—(1) The Corporation may borrow without the consent of any sanctioning authority for any of the purposes specified in the first column of the following table the sums specified in relation thereto in the second column of that table—

1	2	3
Purpose	Amount	Period for repayment calculated from the date or dates of borrowing
(a) The purchase of lands under the powers of this Act for the construction of the river work authorised by this Act	The sum requisite	Sixty years.
(b) The construction of the river work authorised by this Act	£195,000	Thirty years.
(c) The payment of the costs, charges and expenses of this Act	The sum requisite	Five years.

(2) The period from the date of borrowing for the repayment of a sum borrowed under this section shall not exceed the period specified in relation thereto in the third column of the foregoing table.

(3) Subject to the provisions of this section Part IX of the Act of 1933 shall have effect as if moneys borrowed under this section were borrowed under that Part and as if the foregoing table were in the Eighth Schedule to that Act.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section (other than the power of borrowing to pay the costs, charges and expenses of this Act) except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Power to
issue bonds.

34.—(1) The powers of borrowing conferred upon the Corporation by or under any enactment may be exercised by the issue of bonds under this Act in addition to any other means by which the powers may be exercised.

(2) The provisions set out in the First Schedule to this Act shall have effect with respect to bonds issued under this Act.

(3) Where the Corporation borrow by the issue of bonds, the following provisions of the Act of 1933 shall apply as if the money had been borrowed on mortgage under that Act, and as if the bonds were mortgages:—

PART VI
—cont.

Subsections (2) and (3) of section 208 (Title to mortgage and rectification of register);

Section 209 (Notice of trusts);

Section 210 (Receipts on behalf of joint holders and infants);

Section 211 (Appointment of receiver).

35.—(1) The Corporation may, if they think fit, establish a Art fund. fund to be called “ the art fund ” to provide for the purchasing of any pictures, sculptures or other objects of artistic, scientific or historic interest which in their opinion it is desirable at any time to acquire for exhibition in and as additions to the collection in any building owned or occupied by the Corporation and such fund shall be formed by annually appropriating thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the equivalent of one-quarter of the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act, 1925, or such greater fraction (not exceeding one-half) of the product of a penny rate as may be approved by the Minister:

Provided that when the art fund shall amount to the sum of one hundred thousand pounds the Corporation shall discontinue such annual payments but if the said fund is at any time reduced below that sum the Corporation may recommence and continue the annual payments until the said fund be restored to that sum.

(2) The Corporation may pay into the art fund any sum held at the passing of this Act or from time to time received by them by way of donation or legacy for the provision of pictures, sculptures or other objects of artistic, scientific or historical interest but any such sum shall not be taken into account in determining for the purposes of the proviso to subsection (1) of this section the maximum amount from time to time standing to the credit of the art fund.

(3) (a) Pending the application of the art fund to the purposes authorised in subsection (1) of this section the moneys in the said fund shall (unless applied in any other manner authorised by any enactment) be invested in any security in which trustees are for the time being authorised by law to invest trust moneys.

PART VI
—cont.

(b) Any income arising from the investment or use of the moneys in the art fund in manner provided by this subsection shall be credited to that fund.

Period of
service for
superannua-
tion purposes.

36. If any officer or servant who, on the passing of this Act, holds a permanent office or position in the service of the Corporation and who did not, pursuant to the second proviso in the definition of "Officer or servant" in section 57 (Definitions) of the Act of 1920, become an officer or servant whose service was reckoned for the purposes of Part VII of the Act of 1920 as from his appointment—

(a) gives notice in writing to the Corporation that he desires that his period of service shall be reckoned as from his appointment; and

(b) pays to the Corporation such sum or sums calculated in such manner and payable at such time or times as the Corporation may determine;

the service of the officer or servant shall for the purposes of Part VII of the Act of 1920 be deemed to have commenced on the date of his appointment.

Change of
name of
superannua-
tion fund.

37. On and after the passing of this Act—

(1) the superannuation fund established by the Corporation under the Act of 1920 shall be known as "the pension fund";

(2) all enactments, schemes, awards, judgments, deeds, securities, contracts, resolutions, notices, legal and other proceedings and documents relating to the superannuation fund of the Corporation shall have effect as if for all references therein to the superannuation fund there were substituted respectively references to the pension fund.

PART VII

MISCELLANEOUS

Welfare of
aged and
handicapped
persons and
provision of
holiday homes
therefor.

38.—(1) The Corporation may provide or make arrangements for providing aged persons and persons to whom section 29 of the National Assistance Act, 1948, applies with domiciliary services in their own homes.

(2) The arrangements made by the Corporation pursuant to subsection (1) of this section may include arrangements with any voluntary organisation for the provision by that organisation of domiciliary services.

(3) The Corporation may contribute gifts in kind to voluntary organisations whose activities in the city consist in or include the provision of recreation or meals for aged persons.

(4) (a) The Corporation may provide residential accommodation to be used by aged persons as holiday homes and for this purpose they may—

- (i) erect houses and other buildings upon any lands for the time being belonging to them;
- (ii) purchase, take on lease or accept gifts of houses and other buildings and alter, enlarge or adapt any such houses or buildings; and
- (iii) fit up, furnish, equip and maintain any such accommodation, houses and buildings.

(b) For the purposes of paragraph (a) of subsection (7) of section 21 of the National Assistance Act, 1948, any accommodation provided by the Corporation under this subsection shall be deemed to be accommodation provided under Part III of that Act, but nothing in this subsection shall be deemed to authorise the use of any public service vehicle belonging to the Corporation for the conveyance of any persons to and from such accommodation.

(5) The Corporation may recover from persons availing themselves of any service provided under this section such charges (if any) as, having regard to the cost of the service, the Corporation may determine, whether generally or in the circumstances of any particular case.

(6) This section shall apply to such aged persons and such persons to whom the said section 29 applies as are resident in the city.

(7) In this section—

the expression “domiciliary service” includes the installation of such safety equipment as may be necessary or desirable but does not include the provision of meals; and

the expression “voluntary organisation” has the meaning assigned to it by section 64 of the National Assistance Act, 1948.

(8) Nothing in this section shall empower the Corporation to create or permit a nuisance.

39.—(1) The Corporation may in or in connection with any public library hereafter provided by them under the Public Libraries Acts, 1892 to 1919, provide accommodation for the purposes of lectures, exhibitions, concerts, displays and the performance of stage plays for or in connection with the advancement of art, education, drama, science, music or literature.

Extension of
powers of
section 56
of Manchester
Corporation
Act, 1946.

PART VII
—cont.

(2) The provisions of section 56 (Provision of lectures etc. in libraries) of the Manchester Corporation Act, 1946, as amended by this Act, shall, with any necessary adaptations, apply and extend to accommodation provided by the Corporation in accordance with the provisions of this section as it applies to any part of a public library provided by them and not at the time required for the purpose of a library.

(3) For the purposes of this section the expression “accommodation” includes buildings or rooms designed, adapted or set aside for use as a theatre or restaurant or for purposes ancillary thereto.

Amendment
of section 56
of Manchester
Corporation
Act, 1946.

40. Section 56 (Provision of lectures etc. in libraries) of the Manchester Corporation Act, 1946, shall have effect as if—

(1) the following were substituted for subsection (2):—

“(2) (a) The Corporation may provide and sell or authorise the provision and sale of programmes of any lectures, exhibitions, concerts, displays or stage plays given in pursuance of this section.

(b) If any part of a public library or any accommodation provided in connection with a public library is for the purposes of subsection (1) of this section used as a theatre, lecture room or exhibition hall the Corporation may in connection with the use of the said theatre, lecture room or exhibition hall for those purposes provide and sell or authorise the provision and sale of meals and refreshments.”; and

(2) there were inserted at the end of subsection (5) the words “or for the sale of intoxicating liquor or tobacco”.

Removal of
Melandra
Auxiliary
Reservoir.

41.—(1) It shall no longer be necessary for the Corporation to maintain the auxiliary reservoir (commonly called the Melandra Auxiliary Reservoir) and weirs, gauges and works constructed by them in pursuance of section XVI (An auxiliary reservoir to be provided on the river Etherow for ensuring supply of water to certain mills) of the Manchester Corporation Waterworks Amendment Act, 1848.

(2) Accordingly the Corporation may at their own expense remove the said auxiliary reservoir and the weirs, gauges and works constructed in connection therewith.

Abolition of
public water
rate.

42.—(1) In this section the expression “public water rate” means the rate called “the public water rate” which section CXI of the Manchester Corporation Waterworks Act, 1847 (relating to the making and levying of a domestic water rate and a public water rate on premises within the city), empowers the Corporation to cause to be made, once in every year, and levied upon the owners of all dwelling-houses, shops, warehouses, counting-houses, coach-houses, stables, cellars, vaults, buildings, workshops,

mills and manufactories, and of the several gardens, yards or lands thereunto belonging, and of all other yards, gardens, tenements and hereditaments within the city according to the full net annual value thereof, and in like manner upon the owners of any garden not attached to or occupied with a dwelling-house, and of all arable, meadow or pasture land within the city, according to one-fourth part only of such net annual value thereof respectively.

(2) On and after the first day of April, nineteen hundred and sixty-three—

(a) the power conferred upon the Corporation by section CXI of the Manchester Corporation Waterworks Act, 1847, to cause the public water rate to be made and levied shall cease to have effect:

Provided that the provisions of the said section CXI relating to the making and levying of the domestic water rate shall, subject to any necessary adaptations, continue to have full force and effect;

(b) so much of any enactment contained in the Manchester Corporation Acts, 1844 to 1962, and so much of any order made under those Acts or any other enactment as relates to the public water rate or to the public water rate and any other matter shall, so far as it applies to the public water rate, cease to have effect;

(c) any reference in the Manchester Corporation Acts and Orders, 1844 to 1962, to any water rate or rates shall be deemed to be a reference only to the domestic water rate authorised to be made and levied under the said section CXI;

(d) the following subsection shall be substituted for subsection (5) of section 119 (Power of Minister of Health to fix rents, &c., for a supply of water for domestic use outside city) of the Manchester Corporation Act, 1919:—

“(5) Subject to the provisions of any order for the time being in force under subsection (1) of this section the actual rents and charges to be demanded and taken by the Corporation in any year for a supply of water for domestic purposes to premises within the water limits outside the city shall be of the same amount as the rates and charges demanded and taken by the Corporation for a supply of water for domestic purposes in respect of premises of the same net annual value within the city.”

(3) Notwithstanding the provisions of subsection (2) of this section, the public water rate due to the Corporation immediately before the first day of April, nineteen hundred and sixty-three,

PART VII
—*cont.*

shall continue to be due and payable and may be levied, collected and recovered by the Corporation, as if that subsection had not been enacted.

Extension of
period of use
of open
spaces for
temporary
housing
accommoda-
tion.

43.—(1) The authorisations (as hereinafter defined) given to the Corporation under section 1 of the Housing (Temporary Accommodation) Act, 1945 (which enables the Minister to authorise the use of open spaces during a limited period for temporary housing accommodation), which at the commencement of this Act are in force by virtue of an order made under section 19 of the Housing Repairs and Rents Act, 1954, shall be extended to the end of the year nineteen hundred and sixty-five.

(2) The authorisations referred to in this section are—

- (a) the authorisation given to the Corporation on the second day of August, nineteen hundred and forty-five by the Manchester (Wythenshawe Park) Open Spaces (Temporary Accommodation) Order, 1945, as respects land forming part of Wythenshawe Park;
- (b) the authorisation given to the Corporation on the seventeenth day of August, nineteen hundred and forty-five by the Manchester (Broadhurst Park) Open Spaces (Temporary Accommodation) Order, 1945, as respects land forming part of Broadhurst Park;
- (c) the authorisation given to the Corporation on the second day of August, nineteen hundred and forty-five by the Manchester (Houghend Fields) Open Spaces (Temporary Accommodation) Order, 1945, as respects land forming part of Houghend Fields.

Local grants
for
improvement
of dwellings.

44.—(1) Subject to the provisions of this section—

- (a) the Corporation may, if they think fit, give assistance in respect of the improvement of any dwelling in the city by the owner thereof by the execution of such works as may in the opinion of the Corporation be required for the dwelling to be provided, for the exclusive use of its occupants, with all or any of the following amenities:—

- (i) a fixed bath or shower in a bathroom;
 - (ii) a wash-hand basin;
 - (iii) a hot water supply;
 - (iv) a water closet in or contiguous to the dwelling;
- and
- (v) satisfactory facilities for storing food;

by way of making a grant (hereafter in this section referred to as “a local improvement grant”) in respect of the cost of executing the works, if an application in that behalf is made by the owner to the Corporation

and approved by them before the works are begun and the works are executed to their satisfaction within such period (if any) as may be determined by the Corporation;

(b) an application under this section must specify the dwelling and the nature and extent of the works proposed to be executed and must also contain a statement that the owner is the occupier of the dwelling or that the occupier has consented in writing to the making of the application;

(c) the amount of a local improvement grant in respect of any dwelling shall be such amount as the Corporation may determine but shall not exceed one-half of the cost shown to have been incurred in executing the works in respect of which it is made or if works have been executed providing all the amenities specified in paragraph (a) of this subsection shall not exceed the sum of one hundred and fifty-five pounds;

(d) (i) a local improvement grant may be made subject to such conditions as the Corporation may impose and any such condition shall be binding not only upon the owner but also upon the successors in title of the owner and any person claiming through or under him;

(ii) without prejudice to the generality of the provisions of sub-paragraph (i) of this paragraph the Corporation may impose all or any of the following conditions:—

(A) that the dwelling shall not be used for purposes other than those of a private dwelling-house except with the consent in writing of the Corporation;

(B) that unless the Corporation otherwise agree, the dwelling shall, at all times at which it is not occupied—

(i) by the applicant for the local improvement grant or a member of his family; or

(ii) by a person who on the death of the applicant has (whether or not in consequence of a disposition by will) become beneficially entitled to, or to an interest in, the interest of the applicant in the dwelling or the proceeds of sale thereof, or by a member of the family of such a person;

PART VII
—cont.

be let or kept available for letting at a rent not exceeding the rent which, by virtue of paragraph (C) of this sub-paragraph, may be paid by an occupier of the dwelling;

(C) that the rent payable by the occupier of the dwelling shall not exceed—

(i) in the case of a tenancy to which the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, apply or a statutory tenancy, the limit imposed by section 1 of the Rent Act, 1957; and

(ii) in the case of any other dwelling, the rent paid by the occupier before the carrying out of the improvements or such higher rent as the Corporation, on the application of the owner, may fix;

(D) that the owner of the dwelling shall, on being required so to do by the Corporation, certify that the conditions imposed under paragraphs (A), (B) and (C) of this sub-paragraph are being observed with respect to the dwelling;

(E) that the conditions imposed under the foregoing provisions of this sub-paragraph shall be observed for a period of three years from the date of the payment of the local improvement grant or such longer period as the Corporation may prescribe in the case of any particular dwelling;

(F) that in the event of the breach of any of the conditions imposed under the foregoing provisions of this sub-paragraph the Corporation may, if they think fit—

(i) require the owner for the time being of the dwelling to repay to them the amount of the local improvement grant; or

(ii) direct that if the breach can be remedied it shall be so remedied;

(G) that the Corporation may, upon the repayment by the owner of the amount of the local improvement grant, or such part thereof as they consider to be reasonable in the circumstances, determine that the dwelling shall be released from any conditions imposed by the Corporation;

(iii) a condition imposed under this subsection shall be treated as a local land charge for the purposes of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926;

(e) in this section the expression “ owner ” means a person who has, in every parcel of land on which the works are to be carried out, an interest constituting either an estate in fee simple absolute in possession or a term of years absolute of which not less than eight years will remain unexpired at the date of the intended completion of the works.

PART VII
—cont.

(2) This section shall not apply to a dwelling in respect of which an application for a standard grant under section 4 of the House Purchase and Housing Act, 1959, may be entertained.

PART VIII
GENERAL

45.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “ department ” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section “ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946.

46. In arbitrations under a provision of this Act mentioned in the first column of the following table the reference shall be to a single arbitrator to be appointed by agreement between the parties, or, in default of agreement, to be appointed by the person mentioned in the second column of that table on the application of any party after giving notice in writing to the other party or parties:— Arbitration.

1	2
Provision of Act	Person appointing arbitrator
Subsections (3) and (5) of section 22 (Underpinning of buildings)	President of the Institution of Civil Engineers.
Subsection (3) of section 23 (Stopping up of Drover Lane)	President of the Institution of Civil Engineers.
Paragraph (6) of section 24 (For protection of Mersey River Board)	President of the Institution of Civil Engineers.
Subsection (10) of section 32 (Removal of human remains)	President of the Law Society.

PART VIII
—cont.The
appointed
day.

47.—(1) In this Act “appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) The Corporation shall cause to be published in a local newspaper circulating in the city notice—

(a) of the passing of any such resolution and of the day fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(3) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(4) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the licensing of a person carrying on any business, it shall be lawful for any person who—

(a) immediately before that day was carrying on that business; and

(b) had before that day duly applied for the licence required by that provision;

to continue to carry on that business until he is informed of the decision with regard to his application, and, if the decision is adverse, during such further time as is provided under sub-section (2) of section 49 (Appeals) of this Act.

Restriction
on right to
prosecute.

48. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation.

49.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates' court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

PART VIII
—cont.

Appeals.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

then, until the time for appealing has expired or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

50. Section 265 of the Public Health Act, 1875, shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and to any other local Act of the Corporation for the time being in force (not being an Act containing a provision protecting members and officers of the Corporation from personal liability for matters or things done or contracts entered into by the Corporation or matters or things done by a member or officer of the Corporation) and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority.

Protection of
members and
officers of
Corporation
from personal
liability.

51. The sections of the Act of 1936 mentioned in the Second Schedule to this Act shall have effect as if references therein to that Act included references to this Act.

Application
of general
provisions
of Act of
1936.

52. No power conferred upon the Corporation by subsection (2) of section 35 (Art fund) of this Act shall be exercised in such manner as to be at variance with any trust subject to which any

Saving for
trusts.

PART VIII
—cont.

sum is held by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person.

Saving for
town and
country
planning.

53. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of
Act.

54. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

SCHEDULES

FIRST SCHEDULE

Section 34.

BONDS

1. Bonds issued under this Act shall—

- (a) bear interest at such rate as the Corporation may determine at the time of the issue of the bonds;
- (b) be issued in amounts of five pounds and multiples of five pounds;
- (c) be issued for such period as the Corporation may determine being not less than a period of one year.

2. The bonds shall be deemed to be loan capital within the meaning of section 8 of the Finance Act, 1899.

3. The provisions of section 115 of the Stamp Act, 1891 (which relates to composition for stamp duty) shall, with the necessary adaptations, apply to the Corporation as if bonds issued by the Corporation were stock or funded debt of the Corporation within the meaning of that section.

4. The bonds may be issued at such price as the Corporation may from time to time determine, but not, without the consent of the Minister, at a discount.

5. Bonds shall not be issued of greater aggregate nominal amount than will produce, according to the price of issue, the amount of money that for the time being the Corporation are authorised to borrow.

6. Where a bond has been issued at a discount so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

7. The bonds may be cancelled by purchase in the open market or by agreement with the bondholder and, if not so cancelled, shall be repayable at par at a place and on the date specified in the certificate issued in respect of the bonds; and no interest shall be payable on a bond in respect of any period after the date upon which the bond is repayable.

8. The treasurer shall cause to be kept a register of all persons who are holders for the time being of the bonds. The register shall contain the following particulars:—

- (a) the name, address and description of each holder, a statement of the bonds held by him, the price at which they are issued, the date for repayment and the number and dates of the certificates issued to him as hereinafter provided;

1ST SCH.
—cont.

(b) the date of registration of each holder, and the date on which he ceased to be registered.

9. The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

10. The Corporation shall issue to each holder of a bond a certificate in respect thereof, duly numbered and dated, and specifying the amount of the bond and the date and place for repayment. The certificate shall be in the form appended to this schedule or in a form to the like effect.

11. The certificate shall be prima facie evidence of the title of the person therein named to the bond therein specified.

12. If a certificate is worn out or damaged, the Corporation, on the production thereof, may on payment of a fee not exceeding five shillings cancel it and issue a new certificate in lieu thereof.

13. If a certificate is lost or destroyed, the Corporation on proof thereof to their satisfaction, and, if they so require, on receiving an indemnity against any claims in respect thereof may on payment of a fee not exceeding five shillings issue a new certificate in substitution for the certificate lost or destroyed.

14. An entry of a substituted certificate shall be made in the register.

15. The transfer of a bond shall be by instrument in the form appended to this schedule or in a form to the like effect.

16. A bond may be transferred in whole or in part, so however that any part transferred shall not be for an amount other than five pounds or a multiple of five pounds.

17. The instrument of transfer shall be delivered to, and retained by, the treasurer; and the treasurer shall enter a note thereof in a register to be called the "Register of Transfers of Manchester Corporation bonds", and shall endorse on the instrument of transfer a notice of that entry.

18. The treasurer shall, upon receipt of the instrument of transfer duly executed and stamped, together with the certificate issued in respect of the bond, enter the name of the transferee in the register, and the Corporation shall thereupon issue a new certificate or certificates to the transferee, or to the transferor and transferee, as the case may require.

19. Until the instrument of transfer and the certificate have been delivered to the treasurer and the entry made as aforesaid, the Corporation shall not be affected by the transfer, and the transferee shall not be entitled to receive any payment of interest on the bond.

20. Before registering a transfer of a bond the treasurer may, if he thinks fit, require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer.

1ST SCH.
—cont.

21. A person becoming entitled to a bond by reason of the death or bankruptcy of a holder, or by any lawful means other than a transfer, may, by the production of the certificate issued in respect thereof and of such evidence of title as the Corporation may require, either be registered as holder of the bond, or, instead of being himself registered, may make such transfer of the bond as the holder could have made; and the Corporation shall issue a certificate accordingly.

22. Until such evidence as aforesaid has been furnished to the Corporation, the Corporation shall not be affected by the transmission of the bond; and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

23. Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

24. The Corporation before paying interest on any bonds may, if they think fit, require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

25. The production to the Corporation of a document which is by law sufficient evidence of probate of the will, or letters of administration of the estate, or confirmation as executor of a deceased person, having been granted to some person shall notwithstanding anything in this schedule be accepted by the Corporation as sufficient evidence of the grant.

FORMS

CERTIFICATE

Manchester Corporation

£.....

No.....

Interest payable.....

(Date)

.....per centum Manchester Corporation Bond for £..... repayable
at par on the , 19 , at the.....

This is to certify that.....
is the registered holder of a bond for.....pounds (£.....)
issued by the lord mayor, aldermen and citizens of the city of
Manchester under the Manchester Corporation Act, 1962.

.....

Treasurer of the city and registrar
of loans and stocks.

1ST SCH.
—cont.

INSTRUMENT OF TRANSFER

I, _____,
in consideration of the sum of _____ paid by
_____(hereinafter called “the
transferee”) hereby transfer to the transferee _____

To hold unto the transferee his executors, administrators and assigns
subject to the several conditions on which I held the same immediately
before the execution hereof.

And I, the transferee, hereby agree to accept the said _____
subject to the conditions aforesaid.

As witness our hands and seals ⁽¹⁾ this _____ day of _____,
nineteen hundred and _____.

¹ Sealing is not necessary in the case of an individual.

Section 51.

SECOND SCHEDULE

SECTIONS OF ACT OF 1936 APPLIED

Section	Marginal note
271	Interpretation of “provide”.
283	Notices to be in writing; forms of notices, &c.
284	Authentication of documents.
285	Service of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

Table of Statutes referred to in this Act

Title or short title	Session and chapter
An Act for the good Government and Police Regulation of the Borough of Manchester	7 & 8 Vict. c. xl.
Lands Clauses Consolidation Act, 1845 ..	8 & 9 Vict. c. 18.
Town Police Clauses Act, 1847 ..	10 & 11 Vict. c. 89.
Manchester Corporation Waterworks Act, 1847	10 & 11 Vict. c. cciii.
Manchester Corporation Waterworks Amendment Act, 1848	11 & 12 Vict. c. ci.
Lands Clauses Consolidation Acts Amendment Act, 1860	23 & 24 Vict. c. 106.
Public Health Act, 1875	38 & 39 Vict. c. 55.
Manchester Corporation Waterworks and Improvement Act, 1875	38 & 39 Vict. c. clxi.
Telegraph Act, 1878	41 & 42 Vict. c. 76.
Stamp Act, 1891	54 & 55 Vict. c. 39.
Sale of Goods Act, 1893	56 & 57 Vict. c. 71.
Finance Act, 1899	62 & 63 Vict. c. 9.
Manchester Corporation Act, 1919 ..	9 & 10 Geo. 5 c. cxix.
Manchester Corporation Act, 1920 ..	10 & 11 Geo. 5 c. xcvi.
Land Charges Act, 1925	15 Geo. 5 c. 22.
Rating and Valuation Act, 1925 ..	15 & 16 Geo. 5 c. 90.
Law of Property (Amendment) Act, 1926 ..	16 & 17 Geo. 5 c. 11.
Land Drainage Act, 1930	20 & 21 Geo. 5 c. 44.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Housing (Temporary Accommodation) Act, 1945	8 & 9 Geo. 6 c. 39.
Ministers of the Crown (Transfer of Functions) Act, 1946	9 & 10 Geo. 6 c. 31.
Manchester Corporation Act, 1946	9 & 10 Geo. 6 c. xxxviii.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6 c. 49.
Borrowing (Control and Guarantees) Act, 1946	9 & 10 Geo. 6 c. 58.
Town and Country Planning Act, 1947 ..	10 & 11 Geo. 6 c. 51.
National Assistance Act, 1948	11 & 12 Geo. 6 c. 29.
River Boards Act, 1948	11 & 12 Geo. 6 c. 32.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Housing Repairs and Rents Act, 1954 ..	2 & 3 Eliz. 2 c. 53.
Rent Act, 1957	5 & 6 Eliz. 2 c. 25.
Housing Act, 1957	5 & 6 Eliz. 2 c. 56.
Manchester Corporation Act, 1958	7 Eliz. 2 c. vii.
Highways Act, 1959	7 & 8 Eliz. 2 c. 25.
House Purchase and Housing Act, 1959 ..	7 & 8 Eliz. 2 c. 33.
Road Traffic Act, 1960	8 & 9 Eliz. 2 c. 16.
Land Compensation Act, 1961	9 & 10 Eliz. 2 c. 33.

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1962

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2. Division of Act into Parts.
3. Incorporation of Lands Clauses Acts.
4. Interpretation.

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8. Power to expedite entry.
9. Power to enter for survey or valuation.
10. Disregard of recent improvements and interests.
11. Extinction of private rights of way.
12. Grant of easements by persons under disability.
13. Power to reinstate owners or occupiers of property.
14. Agreements with adjoining owners.
15. Reservation of easements, etc., by Corporation.
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